Immigration & Asylum

Sponsorship and certification establish ordinary residency. Independent courts determine asylum; rights constrain removal.

Article VI · §6.1–§6.2, §6.3, §6.3.a

Ordinary legal residency

State or applicable federal sponsorship is followed by federal certification under statutory categories. No ideological screening or nationality quotas. Written reasons identify any denial. Once both stages are complete, legal residency vests by operation of law; neither executive may delay or condition it. Territorial immigration follows federal standards and the Territorial Compact.

§6.1 — full provision →

Courts, counsel and removal

Only the federal government removes a person. Discriminatory State sponsorship denials and national-security certification denials are judicially reviewable; courts determine remedy. Persons in removal proceedings or bringing a challenge under this section receive appointed counsel if unable to afford it. Article I remedies continue independently.

§6.2 — full provision →

Asylum and protection

Asylum is adjudicated by independent courts within the judiciary before removal is executed. A court's asylum grant creates legal residency without ordinary sponsorship or certification. Proceedings include evidence, interpretation, representation, written reasons and appeal. Unaccompanied minors receive a court-appointed guardian within seventy-two hours. Non-refoulement separately bars return to genuine risk; it alone is not an asylum grant.

§6.3 — full provision →

Citizenship and unexecuted removal

Citizenship from birth follows the defined parentage or territorial rules. All naturalization routes require the independent proficiency assessment under §5.1.b; qualifying service reduces statutory residency requirements. A person whose removal cannot be executed remains at liberty, subject to applicable law. Fraud or security concerns do not permit refoulement or detention without lawful authority.

§5.1 — full provision →

A theoretical constitutional design project — not the law of any existing nation.